

SENATE CHAMBER

STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

No. 2

☐ COMMITTEE AMENDMENT

(Date)

I move to amend Senate Bill No. 2139 by substituting the attached floor substitute (Request #3795) for the title, enacting clause, and entire body of the measure.

Submitted by:

Carrie Hicks
Senator Hicks

I hereby grant permission for the floor substitute to be adopted.

Walter Hamilton
Senator Hamilton, Chair (required)

George Burns
Senator Burns

Greg Alford
Senator Alford

Robert Goodwin
Senator Goodwin

Ryan Logan
Senator Logan

Mike Nice
Senator Nice

Dora Prieto
Senator Prieto

Anthony Sacchieri
Senator Sacchieri

Stanley
Senator Stanley

Stewart
Senator Stewart

Senator Paxton, President Pro Tempore

Senator Daniels, Majority Floor
Leader

Note: Local and County Government committee majority requires six (6) members' signatures.

Hicks-YG-FS-SB2139
3/10/2026 11:55 AM

(Floor Amendments Only)

Date and Time Filed: 3/10/26 4:24PM MA

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 2139

By: Hicks and Nice

FLOOR SUBSTITUTE

[cities and towns - covenants - discriminatory
language - information - effective date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 42-106.1, as
amended by Section 1, Chapter 33, O.S.L. 2024 (11 O.S. Supp. 2025,
Section 42-106.1), is amended to read as follows:

Section 42-106.1. A. Any restrictive covenant on property
contained in a residential addition may be amended if:

1. The restrictive covenant has been in existence for at least
ten (10) years and the amendment is approved by the owners of at
least seventy percent (70%) of the parcels contained in the addition
or the amount specified in the restrictive covenant, whichever is
less; or

2. The restrictive covenant has been in existence for at least
fifteen (15) years and the amendment is approved by the owners of at
least sixty percent (60%) of the parcels contained in the addition

1 or the amount specified in the restrictive covenant, whichever is
2 less.

3 B. Where a preliminary plat has been filed for a residential
4 addition, the requirements of paragraphs 1 and 2 of subsection A of
5 this section shall include all the parcels contained in the
6 preliminary plat.

7 C. In the absence of a provision providing for the amendment of
8 the restrictive covenants of a residential addition the requirements
9 of paragraphs 1 and 2 of subsection A of this section shall apply.
10 A thirty-day notice of any meeting called to amend the restrictive
11 covenants shall be provided to the owners of every parcel contained
12 in the addition. Each parcel shall be entitled to one vote.

13 D. The recorded restrictive covenants on property contained in
14 a residential addition may be amended by the addition of a new
15 covenant creating a neighborhood association for the addition that
16 would require the mandatory participation of the successors-in-
17 interest of all record owners of parcels within the addition at the
18 time the amendment is recorded. The amendment ~~must~~ shall be
19 approved by the record owners of at least sixty percent (60%) of the
20 parcels contained in the addition and shall be subject to the
21 following:

22 1. The amendment shall provide that participation in the
23 neighborhood association created by the amendment shall not be
24 mandatory for persons who are record owners of parcels within the

1 residential addition at the time the amendment is filed of record,
2 but such participation shall be mandatory for all successors-in-
3 interest of the record owners;

4 2. The amendment ~~must~~ shall provide that the concurring vote of
5 not less than sixty percent (60%) of the record owners of parcels
6 contained in the addition shall be necessary for the establishment
7 or change of dues for the neighborhood association; and

8 3. Following approval, the amendment shall be filed of record
9 in the office of the county clerk of the county wherein the
10 residential addition is located against all parcels within the
11 addition. The term amendment may apply to an existing covenant or
12 to a new subject not addressed in existing covenants.

13 A thirty-day written notice of any meeting called to approve any
14 such amendment shall be provided to the owners of every parcel
15 contained in the residential addition. The notice of such meeting
16 shall be published in a newspaper in the county at least fourteen
17 (14) days before the meeting. The notice shall also be given by
18 publication in the neighborhood newsletter. Each parcel within the
19 addition shall be entitled to one vote. Any amendment approved and
20 recorded pursuant to this subsection may thereafter be revoked by
21 approval of sixty percent (60%) of the record owners of parcels
22 within the addition.

23 E. A municipality may amend an existing plat which was
24 previously filed with the office of the county clerk of the county

1 where the addition is located to remove an illegal discriminatory
2 restrictive covenant pursuant to the Fair Housing Act, 42 U.S.C.,
3 Section 3601 et seq. The amendment shall be filed on record in the
4 office of the county clerk of the county where the addition is
5 located against all parcels within the addition after:

6 1. The municipality provides thirty (30) days' written notice
7 to all property owners of all parcels within the addition of the
8 proposed amendment to remove an illegal discriminatory restrictive
9 covenant, the notice including the time, date, and place of the
10 planning commission meeting where the amendment will be considered;
11 and

12 2. The governing body of the municipality approves the amended
13 plat.

14 Nothing in this subsection shall be construed as requiring the
15 approval of the amended plat by the property owners of all parcels
16 within the addition.

17 F. 1. Upon the adoption and recording of an ordinance amending
18 a recorded plat to redact, remove, or strike the discriminatory
19 language from the existing plat, the municipality shall provide the
20 county clerk an Affidavit Regarding Correction of Plats, containing
21 the following:

22 a. the title of the plat to be corrected,
23
24

- b. a reference to the book and page number in which the existing plat has been recorded with the county clerk's office,
- c. the section, township, and range of the plat,
- d. recitation of the discriminatory language to be redacted, removed, or stricken from the plat, and
- e. a copy of the existing plat identifying the discriminatory language to be redacted, removed, or stricken; and

2. Upon receipt of an Affidavit Regarding Correction of Plats from a municipality submitted in accordance with this section, the county clerk shall make redactions to the electronic version of the plat on the county clerk's website in accordance with the information provided in the affidavit.

~~F.~~ G. An illegal discriminatory restrictive covenant contained on a plat is not enforceable in this state, and all illegal discriminatory restrictive covenants contained in plats recorded in this state are unlawful, unenforceable, and declared null and void. Any illegal discriminatory restrictive covenant contained in an existing plat is extinguished and severed from the plat, with the remainder of such plat remaining enforceable and effective.

SECTION 2. This act shall become effective November 1, 2026.

60-2-3795

YG

3/10/2026 4:38:52 PM

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